

CASE SUMMARY

State v. Aamer Suhail

Ct. Case No. 92/2024 | PS Kanjhawala | Court of the Additional Sessions Judge (Electricity), North-West District, Rohini Courts, Delhi

COURT	Court of the Additional Sessions Judge (Electricity), North-West District, Rohini Courts, Delhi
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JUDGE	Sh. Prashant Kumar, Addl. Sessions Judge (Electricity)
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DATE OF JUDGMENT	8 January 2026 (date of inspection / offence: date of inspection)
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PARTIES	State (Tata Power Delhi Distribution Ltd.) v. Aamer Suhail S/o Md. Saleem (tenant/resident of the inspected premises)
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STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Sections 101, 106 & 65B, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.
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RESULT	Acquitted — complaint dismissed. The inspection documents were internally false — a meter that in fact existed was recorded as non-existent, and only external photographs were taken. The accused stands acquitted of the charge under Section 135 of the Electricity Act, 2003.
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CHARGE BEFORE THE COURT

Whether the accused Aamer Suhail dishonestly abstracted electricity at the inspected premises, so as to attract Section 135(1) of the Electricity Act, 2003; and whether the prosecution's inspection, which recorded a non-existent state of affairs, proved the abstraction beyond reasonable doubt.

FACTS

An enforcement team of TPDDL alleged a direct tap at the inspected premises (a connected load of about 6 KW, assessed at about Rs. 1.10 lakh). The inspection report stated that no meter existed; the defence showed that a meter did in fact exist at the premises. The photographs placed on record showed only the exterior of the premises; there were no photographs of the interior or of the alleged illegal connection.

On a complaint under Section 135, the accused pleaded not guilty. The prosecution examined its officials; the contradictions between the inspection documents and the actual state of the premises emerged in cross-examination. Under Section 313 Cr.P.C. the accused denied the allegations and led no defence evidence.

REASONING OF THE COURT

HEADNOTE

An inspection report that records a non-existent state of affairs — declaring “no meter” where a meter in fact existed — and is unsupported by any interior photograph of the alleged tap cannot be the foundation of a Section 135 conviction; the internal falsity of the prosecution’s own documents raises a reasonable doubt fatal to the charge.

The presumption arises only after the prosecution proves the foundational facts. The Court proceeded from first principles: the third proviso to Section 135(1) is a reverse-onus clause that operates only once the prosecution has proved, beyond reasonable doubt, both an unauthorised abstraction of electricity and the identity of the accused as its author or the consumer of the premises. Until that foundation is laid the ordinary burden rests on the prosecution, and where two views are reasonably possible the one favouring the accused must be preferred.

The inspection report was internally false. The report stated that no meter existed at the premises, whereas a meter in fact existed; a document that misstates the very state of the premises it purports to record cannot carry the presumption of regularity or prove the manner of abstraction.

The photographs did not establish the tap. Only external photographs were taken; there was no photograph of the interior or of the alleged illegal connection, so the visual record neither showed the tap nor tied it to the accused.

Material contradictions went to the root. On *Sadhu Singh v. State of Punjab*, contradictions in the prosecution’s own evidence — here between the “no meter” recital and the meter’s existence — entitle the accused to the benefit of the doubt.

The cumulative doubt entitled the accused to acquittal. With the inspection report falsely reciting that no meter existed, and only exterior photographs having been taken, the foundational facts were not established to the standard the law requires. The statutory presumption never arose, the benefit of the doubt went to the accused, and the charge under Section 135 of the Electricity Act, 2003 was not brought home.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1) — Theft of Electricity: the Foundational Facts

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity *and* the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define “dishonestly,” Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

Third Proviso to Section 135(1) — When the Presumption Does Not Arise

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user’s identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section 65B, or the officer’s authority to complain is not proved — the presumption never arises. The ordinary rule then governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

HELD

The prosecution having failed to prove the foundational facts — the inspection report falsely reciting that no meter existed, and only exterior photographs having been taken — the charge under Section 135 of the Electricity Act, 2003 was not established beyond reasonable doubt. **The accused is accordingly acquitted, and the complaint is dismissed.**

SIGNIFICANCE

An acquittal on the internal falsity of the prosecution’s own inspection. Four propositions stand out:

- **A false recital in the inspection report is corrosive.** Recording “no meter” where a meter exists destroys the report’s reliability and the presumption of regularity.
- **Exterior-only photographs prove nothing.** A visual record that never shows the interior or the alleged tap cannot establish the abstraction.
- **Contradictions attract the benefit of the doubt.** Self-contradiction in the prosecution’s documents is enough to acquit (*Sadhu Singh*).
- **The presumption never engaged.** With the foundational facts unproved, the reverse-onus presumption did not arise.

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court’s own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Sadhu Singh v. State of Punjab</i> —	Material contradictions in the prosecution’s own evidence entitle the accused to the benefit of the doubt.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.